

B. Unity of invention

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1. Introduction

Under Art. 82 EPC, the European patent application must relate to one invention only or to a group of inventions so linked as to form a single general inventive concept. R. 44(1) EPC (cf. R. 30 EPC 1973) gives an interpretation of the concept of unity of invention where a group of inventions is claimed. For international applications the corresponding provisions are Art. 3(4)(iii) and in particular R. 13 PCT.

As stated in T 501/91, the main purpose of Art. 82 EPC is to prevent several unrelated inventions from being dealt with in a single patent application in order to save fees. It also helps to ensure that claimed and granted intellectual property rights are correctly classified. Moreover, it is in the interests of a rational examination procedure that unrelated subject-matter is not lumped together in a single patent application, while related subject-matter should not be needlessly split up (see T 110/82, OJ 1983, 274).

Procedural aspects of the assessment of unity, including the payment of further search fees, are governed by R. 64 and 164 EPC (cf. Art. 17(3)(a), R. 40 PCT for the ISA, and Art. 34(3)(a), R. 68 PCT for the IPEA).

Protests under the PCT in respect of additional fees paid following a non-unity objection by the EPO acting as ISA (R. 40 PCT) or as IPEA (R. 68 PCT) were previously decided on by the boards of appeal (Art. 154(3) and 155(3) EPC 1973), but are now decided on by review panels of the EPO (R. 158(3) EPC, decision of the President of the EPO, OJ 2015, A59; for the interim procedure see notice of 1 March 2005, OJ 2005, 226). The boards' competence to consider unity in the context of European applications remains unaffected. Given the harmonisation of the definitions concerning unity of invention in R. 13 PCT and Art. 82, R. 44 EPC, the criteria for unity in both systems are the same. Therefore, board decisions rendered according to the former PCT protest procedures ("W" cases) continue to be of interest for the consideration of unity in European applications and so many have been included in this chapter.

The Guidelines for Examination in the EPO (March 2022 version) deal with unity of invention at the search stage in Part B-VII, unity as a procedural aspect of substantive examination in Part C-III, 3, and unity as a requirement of the European patent application in Part F-V. For international applications see especially Chapter 10 of the PCT International Search and Preliminary Examination Guidelines, as in force from 1.3.2022, and the Guidelines for Search and Examination at the EPO as a PCT Authority, B-VII, C-V and F-V – March 2022 version.

2. Unity in the context of different types of claims

2.1. Plurality of independent claims

Under Art. 82 EPC, as under R. 13.1 PCT, the application must relate to one invention only or to a group of inventions so linked as to form a single general inventive concept. The second alternative, i.e. the single-concept linked group, may give rise to a plurality of independent claims in the same or different categories (see also R. 43(2) EPC).

In W 5/92 the board considered it to be implicit in the definition of R. 13.1 PCT that the "invention" be considered in the broadest sense. Thus, according to the former PCT Search Guidelines VII-5 (PCT Gazette No. 30/1992, Sec. IV; No. 29/1993, Sec. IV), the mere fact that an international application contained claims of different categories or several independent claims of the same category was in itself no reason for objection on the grounds of lack of unity (see now guidance in para. 10.01 ff. PCT International Search and Preliminary Examination Guidelines, as in force from 1.3.2022).

R. 44(1) EPC and R. 13.2 PCT provide that where a group of inventions is claimed in a European/international application, the requirement of unity of invention is fulfilled only when there is a technical relationship among those inventions involving one or more of the same or corresponding special technical features.

The corresponding provision R. 30 EPC 1973 as in force until 31.5.1991 (cf. also previous R. 13.2 PCT) specified the following three cases in which a combination of independent claims in different categories was to be considered permitted by Art. 82 EPC 1973:

- (a) in addition to a claim for a given product, a claim for a process specially adapted for the manufacture of the product, and a claim for a use of the product;
- (b) in addition to a claim for a given process, a claim for an apparatus or means specifically designed for carrying out the process;
- (c) in addition to a claim for a given product, a claim for a process specifically adapted for the manufacture of the product, and a claim for an apparatus or means specifically designed for carrying out the process.

The list was not exhaustive and other combinations were permitted if they met the requirements of Art. 82 EPC 1973 (T. 861/92). The same applied to the old version of R. 13.2 PCT (W. 3/88, OJ 1990, 126; W. 29/88, W. 3/89). In T. 702/93 it was held that this version of R. 30 EPC 1973 did not provide for such a fictitious unity in the case of independent claims in the **same** category. While this fiction was removed with the amendment of R. 30 EPC 1973 and R. 13 PCT (both with effect from 1.6.1991), the principles based on it, as set out in the case law, remain unchanged (T. 169/96).

In T. 202/83 it was concluded from the old version of R. 30(c) EPC 1973 (see above) that the requirement of unity was not met by every subject-matter for carrying out a process. On the contrary, the provision presupposed that the means for carrying out the process had been specifically designed. Consequently, such a means in connection with the corresponding process did not meet the unity requirement if it was obvious that it could also serve to solve other technical problems.

In T. 200/86 the board held that it was possible to claim, in one application, not only a product for pharmaceutical use, but also the product's non-therapeutic (cosmetic and dietary) uses.

In W. 29/88 the international application related to chemical products, a process for their preparation and their use. The board was of the opinion that a particular use of a class of compounds on the one hand, and, on the other hand, a claim to that class of compounds per se or to certain members of that class of compounds could form a single general inventive concept. The salient point was not the identity of the respective structural scopes, but whether the compounds claimed per se (and the process for their manufacture) contributed to the solution of the problem underlying the use invention.

In W. 32/88 (OJ 1990, 138) the board was of the opinion that an invitation to pay an additional search fee on the grounds that an international application concerning a process and an apparatus related to two different inventions, whereas the apparatus was specifically designed for carrying out the process, had no legal basis, even if the claims for the apparatus were not restricted to such use (see also W. 16/89).

In W 13/89 the board found unity between a claim to the use of a substance or composition for the preparation of a medicine intended for a specific use (second medical use) and a claim to a pharmaceutical product containing that substance or composition (first medical use). This decision was confirmed in W 5/91 and W 28/91.

In W 23/91 the board confirmed the ISA's view that the novelty of a given product might justify claims of different categories being contained in a single application without contravening the requirements of unity (several new uses of the product in different areas and/or new processes concerning the product, e.g. preparation). In the case in point, the two independent product claims related to two "products", namely a nucleic acid sequence and the protein relating to the nucleic acid sequence. The board held that these products might constitute the common link if they were novel.

In W 40/92 the board took the view that there could be unity of invention if one independent claim to a process and another to the means for executing that process were comprised in one application. Said means could itself also be a process.

In T 492/91 the board found that, for the purposes of Art. 82 EPC 1973, the whole composition covered by claim 6 (new composition) did not need be the product of the process according to claim 1 (process for preparing known products). It was sufficient for one component of the composition to be such a product where the composition and the process were intended to solve the same technical problem. The board concluded that the scope of claim 6 therefore did not have to be limited to the compositions resulting from the process according to claim 1, thus excluding the compositions obtainable by subsequent mixing.

In J 13/13 the Legal Board recalled that R. 43(2) EPC and R. 44 EPC govern two distinct matters: R. 43(2) EPC must be complied with even where a patent application claims and describes a group of inventions that form a single general inventive concept, while R. 44 EPC must be complied with even where only a single independent claim is drafted for each claim category.

2.2. Dependent claims

R. 13.4 PCT provides that dependent claims must fulfil the requirement of unity in accordance with R. 13.1 PCT. The EPC makes no comparable express provision. The question has therefore arisen whether this difference means that there is a difference in the way dependent claims are assessed. Board of appeal case law on PCT cases has been uniform: the requirement of unity must also be met by dependent claims (see inter alia W 3/87, W 2/88, W 30/89, W 32/89, W 26/90, W 8/91 and W 54/91). In EPC cases the boards likewise assume that dependent claims have to meet the requirement of unity. Under the EPC the approach is not as strict as in the case of independent claims: the examination is only carried out in those cases where unity could be problematical (see T 140/83 and T 249/89).

In W 8/91 it was decided that, where claims were formally dependent, the ISA had to state expressly why they lacked unity; it was not enough simply to say that this was shown directly by the subject-matter as defined by the ISA.

In W 6/98 the board held that anticipation of the subject-matter of an independent claim might well lead to a situation of non-unity a posteriori, which however could only be established by showing that there was indeed no unifying novel inventive concept common to all dependent claims. The board noted that lack of novelty of the subject-matter of an independent claim did not automatically lead to a posteriori lack of unity for the claims directly or indirectly appended to said independent claim.

The board in T 129/14 pointed out that, normally, a dependent claim has all the features of its independent claim. If the independent claim comprised one or more special technical features defining a contribution over the prior art, the dependent claim would also comprise them. Hence they would form a single general inventive concept within the meaning of Art. 82 EPC. If the independent claim did not comprise any special technical features defining a contribution over that prior art, e.g. because its subject-matter was not novel, then it would not form any inventive concept. Hence, again no more than one general inventive concept within the meaning of Art. 82 EPC – possibly defined by the additional features of the dependent claim – would result (cf. Guidelines F-V, 9 – November 2015 version; see now Guidelines F-V, 3.2.3 – March 2022 version).

2.3. Intermediate products

In T 57/82 (OJ 1982, 306) it was stressed that the subject-matter of an application relating to new chemical end products, processes for their preparation, and to new intermediates for those end products at all events had unity within the meaning of Art. 82 EPC 1973 if all these subject-matters were technically interconnected and integrated into a single overall concept by being oriented towards the end products. In this context, starting materials which were used in a process for preparing end products and which were themselves products of a disclosed, albeit unclaimed, production process were also considered to be intermediates. This principle was confirmed in T 110/82 (OJ 1983, 274) for low-molecular products. According to that board, an invention relating to new low-molecular end products and to several groups of new low-molecular intermediates invariably had unity if the groups of intermediates prepared and oriented towards the end-products were technically closely interconnected with the end products by the incorporation of an essential structural element into the end-products and if due account was taken of the regulatory function of Art. 82 EPC 1973 (prohibition of unjustified saving of fees, need for ready comprehensibility).

This was confirmed by T 35/87 (OJ 1988, 134) and T 470/91 (OJ 1993, 680). The intermediates in the latter case – unlike those in earlier ones – were not structurally related to each other. However, they provided both the essential structural elements present in the end products. The intermediates of the application were therefore only made available with a view to obtaining the end products and they were sufficiently closely technically interconnected with those end products. Thus, they were integrated into a single overall inventive concept by being oriented towards the end products. This was not prejudiced by